

|    |                                                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|----|----------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                                                              | <p>methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.” (Code Civ. Proc., § 413.30, subd. (a)(2).) See declarations of plaintiff Kim, process server Hernandez and investigator Candias.</p> <p>Plaintiffs may serve the summons and amended complaint, along with a copy of this order, on the California Secretary of State. Service shall be completed <b>within 30 days</b> after delivery to the Secretary of State. Ca. Corp. Code section 17701.16.</p> <p><b>The Court finds this motion (ROA 63) and the one set for May 29, 2026, (ROA 66) are virtually IDENTICAL. Based on the ruling on this motion (ROA 63), the Court now takes the motion set on May 29, 2026, (ROA 66) OFF CALENDAR.</b></p> <p><b>The Case Management Conference is CONTINUED to December 17, 2026, at 9:30 a.m. in Department C12.</b></p> <p>Clerk to give notice.</p> |
| 8. | <p><b>Velocity Investments, LLC vs. Villegas</b></p> <p><b>24-01433786</b></p>               | <p><b>1. Motion to Quash (Service of Summons)</b><br/> <b>2. Case Management Conference</b></p> <p><b>Defendant Frank Villegas’s Motion to Quash Service of Summons and the Case Management Conference were both CONTINUED to August 7, 2026, at 9:30 a.m. in Department C12.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 9. | <p><b>M&amp;Y Personal Injury Lawyers vs. Solution Law APC</b></p> <p><b>25-01517436</b></p> | <p><b>1. Motion for Judgment on the Pleadings</b><br/> <b>2. Case Management Conference</b></p> <p>Defendant Solution Law, APC’s motion for judgment on the pleadings is DENIED. (Code Civ. Proc., § 438 [authorizing motion].)</p> <p><u>1<sup>st</sup> cause of action: common counts.</u></p> <p>This cause of action states sufficient facts to allege a common count for money had and received. (<i>Farmers Ins. Exchange v. Zerin</i> (1997) 53 Cal.App.4th 445, 460 [“A cause of action for money had and received is stated if it is alleged the defendant ‘is indebted to the plaintiff in a certain sum ‘for money had and received by the defendant for the use of the plaintiff’”]; <i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38-39 [complaint is good against a general demurrer so long as the essential facts of some valid cause of action are alleged]; Complaint, ¶¶ 5-8 [plaintiff’s</p>                               |

alleged entitlement to some portion of settlement funds], 11 [moving party's receipt of funds]; Exs. A and B to Complaint, §§ 3 [contingency fee agreement], 4 [client's agreement to pay contingency fee], 6 [lien on "the proceeds of any award, verdict, recovery, and/or settlement"]; see also *Utility Audit Co., Inc. v. City of Los Angeles* (2003) 112 Cal.App.4th 950, 958 ["A claim for money had and received can be based upon money paid by mistake, money paid pursuant to a void contract, or a performance by one party of an express contract"].)

2<sup>nd</sup> cause of action: breach of fiduciary duty.

This cause of action states sufficient facts. (*LaMonte v. Sanwa Bank California* (1996) 45 Cal.App.4th 509, 517 [elements]; *Johnstone v. State Bar* (1966) 64 Cal.2d 153, 155-156 ["When an attorney receives money on behalf of a third party who is not his client, he nevertheless is a fiduciary as to such third party ... the funds in his possession are impressed with a trust, and his conversion of such funds is a breach of the trust"]; Complaint, ¶¶ 5-8 [plaintiff's alleged entitlement to portion of settlement funds], 11 [moving party's receipt of funds, creating duty], 18 [breach], 19-20 [proximately caused damages].)

3<sup>rd</sup> cause of action: breach of contract.

This cause of action is not alleged against this moving party.

4<sup>th</sup> cause of action: declaratory judgment.

This cause of action states sufficient facts. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2002) 82 Cal.App.4th 592, 605; Complaint, ¶¶ 5-8 [plaintiff's alleged entitlement to portion of settlement funds], 11 [moving party's receipt of funds], 29-30 [seeking declaratory relief as to "the amounts due and owing to M&Y" and moving party's duties as successor counsel].)

**Plaintiff's counsel has represented to the Court that Motions to Dismiss will be forthcoming as to Defendants Dania Soto-Beltran and Kirsten Worrells.**

**Based on that representation, the Court now VACATES the Case Management Conference and this matter is scheduled for a Jury Trial on August 13, 2027, at 11:00 a.m. in Department C12. Jury fees are to be paid within 5 days. If jury fees are not timely paid, the jury trial will be converted to a COURT trial.**

Plaintiff shall give notice.

|                   |                                                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|-------------------|-------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>10.</b></p> | <p><b>National Funding, Inc. vs. Westland Campers, Inc.</b></p> <p><b>25-01514351</b></p> | <p><b>1. Motion for Summary Judgment and/or Adjudication</b><br/> <b>2. Case Management Conference</b></p> <p>Plaintiff National Funding, Inc.’s Motion for Summary Judgment is DENIED. (Code Civ. Proc. §437c, subd. (p)(1).) Plaintiff has failed to meet its initial burden to show it is entitled to summary judgment.</p> <p>Defendant’s Request for Judicial Notice is GRANTED. (Evid. Code §452, subd. (d) [court records].) The Court takes judicial notice of the fact that the request for dismissal in the prior action was filed on 6/23/25.</p> <p>Defendant’s evidentiary objection is OVERRULED.</p> <p>Code Civ. Proc. § 437c(p)(1) sets forth a plaintiff’s burden when moving for summary judgment. It provides:</p> <p>“A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The defendant or cross-defendant may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.”</p> <p>““[W]hen a plaintiff moves for summary adjudication, the plaintiff meets his or her burden of showing that there is no defense to a cause of action if the plaintiff proves each element of the cause of action entitling the party to judgment on the cause of action. When plaintiffs bear the burden of proof by a preponderance of evidence at trial, they must present evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not—otherwise, they would not be entitled to judgment as a matter of law, but would have to present their evidence to a trier of fact. If the plaintiff meets their burden, the defendant must set forth specific facts showing a triable issue of material facts exist.” (<i>Campbell v. FPI Management, Inc.</i> (2024) 98 Cal.App.5th 1151, 1162.)</p> <p>Plaintiff moves for summary judgment of its cause of action for breach of contract. The elements for a cause of action for breach of contract are: “(1) the existence of the contract, (2) plaintiff’s</p> |
|-------------------|-------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|